

"Right to Information Act"
"Top Priority"

OFFICE OF THE PRINCIPAL DISTRICT & SESSIONS JUDGE
PUBLIC INFORMATION OFFICER
NEW DELHI DISTRICT, PATIALA HOUSE COURTS, NEW DELHI

Ld. First Appellate Authority:- Sh. Abhilash Malhotra, Ld. PO MACT-02, New Delhi District, Patiala House Courts, New Delhi.

Ld. Link First Appellate Authority:- Sh. Shirish Aggarwal, Ld. PO MACT-01, New Delhi District, Patiala House Courts, New Delhi.

Time Period for filing of Appeal:- Within 30 Days.

No. 13 PIO/Pr. D&SJ/NDD/PHC/2026

Dated : 13/02/26

To,

Ms. Kesar Kanjhlia,
Address:- Tower C, SAS Building,
Ch Baktawar Singh Rd. Medicity 1,
Sec 38, Gurugram, Haryana-122018.
[REDACTED]

Sub:- Information under Right to Information Act, 2005.

This is with reference to your online RTI application having Registration No. PDNDD/R/2026/90002, received in this office by way of electronically transferred from the other public authority, for seeking information under Right to information Act, 2005 as mentioned therein. The application is entered in the institution register vide entry No. 09 dated 22.01.2026.

On receipt of your application, the desired information was sought from the Concerned Courts, New Delhi District, Patiala House Courts, New Delhi and copies of the replies which is self explanatory from Concerned courts are enclosed herewith for your good self.

In view of this, your instant RTI application stands disposed off. No further correspondence in this matter will be entertained in RTI cell, NDD.

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In terms of Section 19 of the Right to Information under RTI Act, 2005, in case you are not satisfied with the information given above, you are at liberty to file an appeal to the Appellate Authority as mentioned above, within thirty days of receipt of this letter, as per rules.

Encl. 7 Pages.


(Chanderhass Ambavat) 13/02/2026
Public Information Officer /
Administrative Officer (Judl.)
New Delhi District,
Patiala House Courts, New Delhi.
E-mail ID:-rtibrnd.ddc@ddc.nic.in.

DR. SHIRISH AGGAWAL, JUDGE
Additional District & Sessions Judge
Motor Accident Claims Tribunal
कोर्ट नं. 4, मुक्त भवन
Court No. 4, Mukt Bhawan
पतियाला हाउस कोर्ट, नई दिल्ली
Patiala House Court, New Delhi

Dated: 02.02.2026

To,
The Public Information Officer
New Delhi District,
Patiala House Courts,
New Delhi

Sub: Information under Right to Information Act, 2005.

Respected Sir,

With reference to the letter no 17-18/PIO/Pr.D&SJ/NDD/PHC/2025 dated 24.01.2026 regarding the subject cited above, it is respectfully submitted that the requisite information is enclosed herewith as Anneuxre-A.

Thanking You,

Yours faithfully,

(Ahmad)

In the court of
Sh. Shirish Aggawal, Ld. PO-MACT,
Patiala House Courts, NDD/ND

Forwarded

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under Right to Information Act-2005

Public Information Officer
Office of Principal District and Sessions Judge
New Delhi District, New Delhi

JUDGE
Motor Accident Claims Tribunal
Patiala House Courts, N. Delhi

13/12/2026

IN THE COURT OF SH. SHIRISH AGGARWAL
LD. PO-MACT-01, PATIALA HOUSE COURTS, NEW DELHI

Annexure-A

Reply

Sr. Information sought
No.

1. PENDING CASES (as on current date)
Please provide the following data in tabular format
for all MACTs under jurisdiction of Delhi High Court.
Total number of MACT cases currently pending,
a) segregated by:

1407

New Delhi District, Patiala House
Courts

* Individual MACT Court Number

MACT-01, Court No. 4, Main Building,
Patiala House Courts, New Delhi

* Year of filing (2015 onwards, year wise breakup)

2015	2016	2017	2018	2019	2020	2021	2022	2023	2024	2025	2026
624	1236	1558	930	1013	383	840	2192	2196	3028	2267	106

- * Case type: Death claims, injury Claims, Property
Damage Claims.

Death Claims: 38
Injury Claims: 298
Property Damage Claims: 4

- b) Total number of cases pending for more than 3
years, with:
District-wise and MACT court-wise breakup.

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* Primary reasons for delay categorized as:

* Claimant/victim non-cooperation on no-appearance. No such records are maintained.

* Missing or incomplete documentation (specify type: medical records, FIR, driving licence, RC etc.) No such records are missing.

* Adjournments granted (indicate on whose request: claimant, respondent, insurance company). No such records are maintained.

* Non-compliance of Section 158(6) of Motor Vehicles Act, 1988 (Accident Information Report not filed within 30 days). No such records are maintained.

* Witness examination/evidence pending.

All types of witnesses are examined
before the Local Commissioner.
Hence, no such records are
maintained.

* Any other reason (specify)

The information cannot be provided
under RTI Rules. As the same is
exempted under RTI Rule 7 (vii) and
Rule 7 (ix) of Delhi District Court
(Right to Information) Rules, 2008",
notified by Hon'ble Delhi High Court
vide No. 162 and 163/Rules/DHC
dated 06.05.2009.

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Office of Principal District and Sessions Judge

New Delhi District, New Delhi

13/12/2026

The relevant Rules are reproduced as under:-

Exemption From disclosure of information:-

Rule 7(vii): The Information is non-existent and will be necessary to create it for supplying it to the applicant.

Rule 7 (ix) The information amounts to analyzing the information for the applicant which does not form part of any existing record.

Further, creation and compilation of data would adversely affect the resources of the public authority. Hence, it is not possible to provide information in terms of Section 7(9) of RTI Act, 2005.

2. DISPOSAL STATISTICS

Please provide data for Financial Years 2020-21 to 2024-25 in tabular format:

a) Total number of cases disposed of (year-wise, district-wise, MACT-wise) categorized by:

2020	2021	2022	2023	2024	2025
297	283	1568	1946	3002	2324

a) Death claims and injury Claims

2020		2021		2022		2023		2024		2025	
Injury	Death	Injury	Death	Injury	Death	Injury	Death	Injury	Death	Injury	Death
153	119	45	36	119	122	69	89	141	112	134	79

* Method of disposal:

* Contested cases (after full trial)

* Settled cases (through compromise/settled in Lok Adalat)

* Cases decided on fault liability basis

* Cases decided on no fault liability basis.

* Cases dismissed for non-prosecution.

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Through mediation : 156

Through Lok Adalat : 1411

No such records are maintained.

No such records are maintained.

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(b) Cases disposed under Fast Disposal of Accident Reports (FDAR) Scheme / Claims Tribunal Agreed Procedure (CTAP)/Modified Claims Tribunal Agreed Procedure (MCTAP) as per Supreme Court direction in Rajesh Tyagi Vs. Jaibir Singh (2009) and Order dated 08.01.2021.

One case disposed under Fast Disposal of Accident Reports (FDAR).

3. TIME TAKEN FOR DISPOSAL. For cases disposed during FY 2020-21 to 2024-25, provide provide: Average time (in months) from filing to final award

No such records are maintained.

a) for:

* Death Claims

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and Right to Information Act-2005

Public Information Officer

Office of Principal District and Sessions Judge

New Delhi District, New Delhi

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NOTIFIED BY ORDER
Under Accident Compensation
Scheme, 1947
Court No. 3, 2000
District and Sessions Judge
Principal District Court, New Delhi

* Injury Claims
* Overall MACT cases
b) Category wise average disposal time:
* Contested cases vs. settled cases
* Fault liability cases vs. No-fault liability cases
(Section 140)
* FDAR/CTAP/MCTAP cases vs. Regular Cases.
c) Compliance with Supreme Court Targets:

No such records are maintained.

* Number and percentage of cases disposed within 120 days (FDAR/CTAP/MCTAP cases).
* Number and percentage of cases disposed within 6-12 months (for standard MACT cases as per Rajesh Tyagi Order dated 08.01.2021).
* Cases taking more than 2 years for disposal (number of percentage).
* Cases taking more than 5 years for disposal (number of percentage).

No such records are maintained.

4. FDAR/CTAP/MCTAP SCHEME COMPLIANCE
Number of cases registered under
a) FDAR/CTAP/MCTAP scheme (FY 2020-21 to 2024-25, year-wise).

No such records are maintained.

b) Number of cases where:
* Detailed Accident Report (DAR) was filed by police within 30 days (as per scheme).
* DAR filing was delayed beyond 30 days (average delay period).

c) Number of cases where insurance company:
* Settled claim within 30 days of receiving DAR.
* Contested/challenged the claim.

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No such records are maintained.
No such records are maintained.

d) Court-wise data on implementation status: Which MACT courts are actively implementing the FDAR/CTAP/MCTAP scheme.

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13/12/2021
Public Information Officer
Office of Principal District and Sessions Judge
New Delhi District, New Delhi

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District Judge Cum Presiding Officer
Motor Accident Claims Tribunal-02
Room No 24 Lockup Building,
Patiala House Courts, New Delhi

Branch Incharge
Section,
Patiala House Courts,
New Delhi District,
New Delhi

Sub: Statistical and anonymized case data relating to Motor Accident Claims Tribunals (MACTs) functioning under the jurisdiction of Delhi High Court for the purpose of academic research/policy analysis.

Respected Sir/Madam,

With reference to order no. 17-18 PIO/Pr. D&SJ/NDD/PHC/2026 dated 24.01.2026, the requisite information is enclosed herewith.

Thanking you


(Asst. Ahlmad)

In the Court of Sh. Abhilash Malhotra,
Ld. PO MACT-02, PHC, NDD

Forwarded Please


JUDGE
Motor Accident Claim Tribunal-02
Patiala House Courts, New Delhi

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under Right to Information Act-2005


Public Information Officer
Office of Principal District and Sessions Judge
New Delhi District, New Delhi

13/02/2026

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RTI REPLY

Information Sought: 1. a) Pending Cases (Year- Wise)(AS ON CURRENT DATE)

IN THE COURT OF SH. ABHILASH MALHOTRA, LD. PO-MACT-02,
PHC, NEW DELHI

Court No. → 31, LockUp Building

YEAR WISE PENDENCY

CATEGORY									
Sr. No.	Year	Fatal	Injury	DAR Cases	Execution Cases	Misc. Applications	Department Enquiry	Damage of Property	Total
1	2008	0	0	0	1	0	0	0	1
2	2012	0	0	0	0	0	0	0	0
3	2014	0	0	0	0	0	0	0	0
4	2015	0	0	0	0	0	0	0	0
5	2016	6	20	1	0	0	0	0	27
6	2017	18	19	10	0	0	0	0	47
7	2018	17	21	9	1	0	0	1	49
8	2019	24	28	19	0	0	0	0	71
9	2020	21	17	16	0	0	0	1	55
10	2021	46	30	21	0	0	0	0	97
11	2022	74	58	46	1	17	0	1	197
12	2023	111	106	10	1	49	0	0	277
13	2024	98	71	1	0	122	0	0	292
14	2025	133	139	0	9	149	0	0	430
15	2026	19	24	0	3	59	1	0	106
TOTAL		567	533	133	16	396	1	3	1649

Reply to Point No 1 (b) of information sought: With regard to the query seeking "primary reasons for delay in MACT cases" under various heads: It is submitted that this court does not maintain any separate record, register, or compiled data categorizing MACT cases on the basis of "primary reasons for delay" such as claimant non-cooperation, adjournments, missing documents, non-compliance of Section 158(6) M.V. Act, pendency of evidence, etc. The information sought would require analysis, interpretation, and opinion-based assessment of individual case records, which is not envisaged under the Right to Information Act, 2005. As per Section 2(f) of the RTI Act, 2005, "information" means material available in any form and held by or under the control of the public authority. Further, under Section 2(j), the right to information is restricted to existing records and does not extend to creation or compilation of information. Accordingly, the information sought under this head cannot be provided as the same is not available on record in the manner requested.

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Under Right to Information Act-2005
Public Information Officer
Office of Principal District and Sessions Judge
New Delhi District, New Delhi

(Asst. Ahmed)

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- Information Sought:
3. Disposal Statistics (for financial year 2020-21 to 2024-25)
 3. Time Taken for Disposal (FY 2020-21 to 2024-25)
 4. FDAR/CTAP/MCTAP scheme (FY 2020-21 to 2024-25)

Reply to Point 2,3 and 4: This court (MACT-02) was newly created vide order no. 30/D-3/Gaz.IA/DHC 2025 dated 20.08.2025 and started functioning w.e.f. 26.08.2025.

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Public Information Officer
Office of Principal District and Sessions Judge
New Delhi District, New Delhi

13/02/2026


(Asst. T. Ahlmaul)